

PETITION FOR ERASURE OF RECORDS FOLLOWING AN ABSOLUTE PARDON (C.G.S. SEC. 54-142A(D))

USE THIS PAGE ONLY IF you received the absolute pardon BEFORE 1 October 1974. On that branch, C.G.S. Sec. 54-142a(d) requires a petition to the Superior Court, which shall direct erasure. If your absolute pardon was received on or after 1 October 1974, do not file anything: erasure happens without a petition, and the other page of this packet explains how to confirm it.

STATE OF CONNECTICUT
SUPERIOR COURT

Judicial district or court location:

(No source this packet is built from states the caption or format Superior Court clerks accept for this petition. Before filing, call the clerk's office of the Superior Court and ask how this petition should be captioned and where it should be filed; write what the clerk tells you on the lines above.)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Docket number of this petition: (the clerk assigns it at filing)

PETITION FOR ERASURE OF RECORDS FOLLOWING AN ABSOLUTE PARDON
(C.G.S. Sec. 54-142a(d) - pardon received before 1 October 1974)

1. The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, states that the petitioner received an absolute pardon for the conviction identified below, and that the pardon was received before 1 October 1974. An absolute pardon is not a provisional pardon and not a certificate of employability; neither of those erases anything, and this petition is not for them.

Date the absolute pardon was received:
.....

2. The conviction for which the absolute pardon was received is:

Court in which the conviction was entered:
.....

Docket number of the pardoned conviction:
.....

Date of the pardoned conviction:
.....

3. The petitioner therefore petitions the Superior Court, pursuant to C.G.S. Sec. 54-142a(d), to direct the erasure of the records of the conviction identified above.

4. No fee is payable with this petition: C.G.S. Sec. 54-142a(k) provides that no fee shall be charged in any court with respect to any petition under Sec. 54-142a.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner. The source review states no notarization requirement and no service requirement; ask the clerk whether either applies locally when you call about the caption.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Routes: obligation:unit:CT:ct-pardon-erasure:ct-pardon-erasure-branch-pre-1974-petition ;
obligation:unit:CT:ct-pardon-erasure:ct-pardon-erasure-branch-post-1974-automatic

ERASURE WITHOUT A PETITION: THE ON-OR-AFTER 1 OCTOBER 1974 BRANCH

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

USE THIS PAGE ONLY IF you received the absolute pardon ON OR AFTER 1 October 1974. On that branch there is nothing to file: C.G.S. Sec. 54-142a(d) provides that such records shall be erased, without a petition.

WHAT ERASURE MEANS HERE. Connecticut law says erasure, and that is the only word this packet uses for the relief - it is the statute's own. The words other states use for record relief belong to other states' statutes, and using them in Connecticut invites the wrong questions.

STEP ONE - CONFIRM WHAT KIND OF PARDON YOU RECEIVED. Only an absolute pardon reaches erasure. A provisional pardon or a certificate of employability is not an absolute pardon and does not erase anything. If you are not certain which you received, ask the Connecticut Board of Pardons and Paroles for a copy of the pardon decision showing what was granted and the date it was granted.

STEP TWO - CONFIRM THE PARDON DATE. The date decides the branch. Received before 1 October 1974: the petition page of this packet applies instead of this one. Received on or after 1 October 1974: this page applies and there is nothing to file.

STEP THREE - CONFIRM THE ERASURE HAPPENED. Look the case up in the Connecticut Judicial Branch online case look-up. An erased case will not appear. If the case still appears after the absolute pardon, contact the clerk of the Superior Court and ask about the status of the erasure; take a copy of the pardon decision with you.

WHEN TO STOP AND GET HELP INSTEAD:

- the pardon was provisional rather than absolute, which erases nothing;
- the pardon date cannot be established, so the branch cannot be selected;
- the court sets a hearing on the pre-1974 petition;
- you have an immigration matter.

Routes: obligation:unit:CT:ct-pardon-erasure:ct-pardon-erasure-branch-pre-1974-petition ;
obligation:unit:CT:ct-pardon-erasure:ct-pardon-erasure-branch-post-1974-automatic